

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Yazmin Sanchez	Team: Team # 8	CCRB Case #: 200005938	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Sunday, 08/13/2000 2:34 PM	Location of Incident: C/O West 140th Street & Hamilton Place	18 Mo. SOL 2/13/2002	Precinct: 30
Date/Time CV Reported Sun, 08/13/2000 3:18 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 08/23/2000 11:07 AM

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Ronald Luparello	27134	916088	030 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Ronald Luparello	Force: PO Ronald Luparello used physical force against § 87(2)(b) [REDACTED]	A . Complaint Withdrawn

Synopsis

Complainant § 87(2)(b) stated that just as he and a friend were about to smoke a marijuana cigarette in front of a park on the corner of West 140th Street and Hamilton Place, two male white officers drove up to them and exited their vehicle. § 87(2)(b) alleges that although he did not resist arrest, PO Luparello tripped him, causing § 87(2)(b) to fall face-first to the ground. § 87(2)(b) allegedly suffered a fractured nose as a result. § 87(2)(b)'s arrest report indicated that he was charged § 87(2)(b) and that force was used to restrain him. § 87(2)(b) planned to pursue a civil case after his criminal case was terminated.

§ 87(2)(b) interviewed with CCRB on 9/1/00. § 87(2)(g) During a telephone conversation between the investigator and the complainant on 9/25/00 that was part of the effort to arrange a canvass for witnesses, § 87(2)(b) informed the investigator of his desire to withdraw his complaint. § 87(2)(b)

§ 87(2)(b) He indicated that he was withdrawing his complaint voluntarily and of his own free will; there was no coercion. § 87(2)(b) was informed that the complaint could be reopened if he so desired, § 87(2)(b)

On 9/25/00, the investigator sent § 87(2)(b) a withdrawal letter enclosed in a stamped self-addressed envelope. To date, § 87(2)(b) has not yet returned the withdrawal letter.

On 9/29/00, Manager Weisheit reviewed the taped withdrawal and found it to be within the guidelines set forth by the CCRB.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: